

IN THE FAMILY DIVISION
SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

IN THE MATTER OF:

EVAKAY BALDES	10/19/09	CASE NO.	JV24-00104
ALEXIS CLARK	02/24/14		JV24-00105

MINOR CHILDREN.

DEPT. NO. JM1

MASTER'S RECOMMENDATIONS FOR PROTECTIVE CUSTODY

This matter came before the Court on JANUARY 26, 2024; with the following persons appearing:

Mother: MEGAN MCCAFFERTY, present, represented by Kris Riley, Esq., DPD

Father: JUSTIN BALDES (father to Evakay) not present

Father: DONOVAN CLARK (father to Alexis) present, represented by Benjamin Pearce, Esq., DAPD

Other: Jeff Briggs, Esq., Northern Nevada Legal Aid

DDA: Tyler E. Beach WCHSA: RYAN R. WILLIAMSON, MSW

The Court has advised each party of their right to be represented and to present evidence.

Having heard the evidence and good cause appearing, the Court hereby makes the following findings and recommendations:

The Court has jurisdiction pursuant to NRS Chapters 432B and 125A as the minor children were located in Washoe County at the time of removal.

There is reasonable cause to believe that:

X Continuation in the home is contrary to the welfare of the children due to the following:

Mr. Clark's ongoing substance use impacts the safety of the children. Mr. Baldes' whereabouts were unknown at the time of removal and are presently unknown despite diligent efforts by WCHSA to locate him.

The Court found after a contested hearing as to Ms. McCartney that there was regular and ongoing methamphetamine use by Mr. Clark with the knowledge of Ms. McCafferty. There has been methamphetamine left out in reach of the children, Mr. Clark has used methamphetamine in front of the children or with their knowledge, and Alexis described her knowledge of where the methamphetamine was stored and the container it was in. After that information was brought to the attention of Ms. McCafferty, the use continued within the children's home, and with the knowledge of Alexis. Mr. Clark's behaviors are reported to be erratic. Ms. McCafferty is minimizing Mr. Clark's behaviors in the home including the frequent yelling and screaming, which is causing Alexis to have stomachaches and is affecting her emotional demeanor. Additionally, Mr. Clark damaged Ms. McCartney's bicycle, an appliance in the home, punched holes in the wall, and Mr. Clark is sabotaging Ms. McCafferty's employment. Despite all of this being brought to her attention, Ms. McCafferty allowed Mr. Clark back into the home and Alexis was encouraged to lie about the same. Ms. McCafferty is unwilling or unable to be a protective parent for the minor children at this time.

X It is in the best interests of the children to be placed outside their home due to the following:
The foregoing factual findings are fully incorporated herein by reference thereto.

X To date, the following reasonable efforts have been provided to prevent the children's removal from the home: WCHSA offered services to address domestic violence and substance use; however, Mr. Clark did not engage in those services. Additionally, the family was not transparent about where Mr. Clark was residing which prevented in-home safety planning. The Court additionally found that WCHSA had provided services to the family surrounding substance use and provided Ms. McCafferty with a domestic violence advocate. Moreover, counseling was offered to Evakay and Ms. McCarthy, and Alexis' school offered services regarding hygiene and domestic violence shelters. Those services were reasonable.

X Social worker's assessment of risk and safety factors left no alternative but to remove.

X The children are placed in compliance with NRS 432B.3905 as the children are placed together in emergency shelter care and will be moving to a family foster home on Tuesday, January 30, 2024.

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For Indian Child Welfare Act (ICWA) cases:

☐ The child(ren) is/are Indian child(ren) pursuant to 25 USC §1912. Tribe Name: _____

X It is unknown at this time whether Evakay is an Indian child pursuant to 25 USC § 1912. There is some indication that Mr. Baldes is an enrolled member in a Native American Tribe; however, it is unknown what tribe and whether Evakay is eligible for enrollment. WCHSA will continue to look into this matter.

☐ Pursuant to 25 USC §1922 emergency placement of the child(ren) was necessary to prevent imminent physical harm or damage to the child(ren).

☐ The following active efforts have been made to provide remedial services and rehabilitative programs designed to prevent the breakup of the Indian family, and those efforts have proved unsuccessful: _____

X ICWA is not found to be applicable herein as to Alexis.

☐ _____ shall submit to ☐ random drug/alcohol screens; ☐ substance abuse evaluation; ☐ genetic testing to confirm alleged paternity.

☐ _____ is/are referred to the Family Treatment Court.

☐ Other: _____

X The above-named children shall be placed in the legal/physical custody of WCHSA.

☐ The child(ren) may be physically placed with _____

X Based upon sworn testimony Ms. McCafferty and Mr. Clark are found to be indigent.

The Public Defender's Office is appointed as counsel upon filing of a Petition for Ms. McCafferty.

The Alternate Public Defender's Office is appointed as counsel upon filing of a Petition for Mr. Clark.

Northern Nevada Legal Aid is appointed to represent the minor children.

X Notwithstanding the factual stipulations reached and placed on the record today, the parties agree WCHSA may address any and all safety risks or reunification barriers identified on or about the time of removal in future

proceedings (petition, case plan, court reports, etc.).

Washoe County Human Services Agency (WCHSA) may consent to any and all necessary and/or emergency medical treatment for the above-named minor children while the children remain in its custody. The parents or legal guardians shall reimburse WCHSA for the costs of care as provided in NRS 432B.560(2). Jurisdiction is expressly retained by this Court to determine and modify costs of care in accordance with NRS 125B.070 and 125B.080 from the date of this Order.

Dated: January 29, 2024



JUVENILE MASTER

NOTICE

These Recommendations are governed by WDCR 24 and WDFCR 32. Any objection or motion to adopt or modify the master's recommendation shall be filed within 7 days after service of written findings of fact and recommendation. The objection or motion to adopt or modify shall briefly state the primary issues for review.

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